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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,

v.

Subhi Abdelhalim; CSAA Insurance Exchange;
Phillips, Spallas & Angstadt LLP; Priya D.
Navaratnasingham; Alberto Reyna; Michael R.
Chambers; Carbone, Smith & Koyama; and Does 1
through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

PLAINTIFF'S CONTEST OF MAY 12, 2026
TENTATIVE RULINGS (LINES 8.1, 8.2, 8.3)
AND CONTINGENT MOTION FOR
RECONSIDERATION; SUPPLEMENTAL
MEMORANDUM AND DECLARATION;
LODGING OF PROPOSED THIRD
AMENDED COMPLAINT

(Code Civ. Proc., §§425.16(b), 425.17, 1008(a), 473(d);
Civ. Code §47(b); Evid. Code §§451, 452(c)-(d), 453, 459;
Cal. Rules of Court, rules 3.1113(j), 3.1308, 3.1324; S.F.
Local Rule 8.3(D))

Cross-noticed for pending defense hearings (this case,
Dept. 301):

#	Motion	Date / dept / judge
(1)	Anti-SLAPP (Code Civ. Proc., § 425.16)	May 12, 2026, 9:00 a.m.; Dept. 301; Hon. Christine Van Aken

Complaint filed: Dec. 23, 2025
FAC filed: Feb. 25, 2026

1 I. TO THE COURT, THE CLERK, AND ALL PARTIES AND THEIR COUNSEL OF
2 RECORD

3 PLEASE TAKE NOTICE that, pursuant to the San Francisco Superior Court Department
4 301 contest procedure (S.F. Local Rule 8.3(D); Cal. Rules of Court, rule 3.1308), Plaintiff
5 Franciscus Dylan Rosario timely contests the May 12, 2026 tentative rulings on Lines 8.1
6 (Defendants' anti-SLAPP motion to strike the First Amended Complaint), 8.2 (Defendants'
7 demurrer to the First Amended Complaint), and 8.3 (Plaintiff's Motion for Leave to File
8 Second Amended Complaint).

9 Plaintiff further moves this Court, pursuant to Code of Civil Procedure sections 1008(a)
10 and 473(d), Evidence Code sections 451, 452(c)–(d), 453, and 459, and the Court's inherent
11 authority (see *Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1107–08), for an order, becoming
12 operative upon entry of any order adopting the tentative:

- 13 1. VACATING the §425.16 grant as to the First Amended Complaint, or, in the alterna-
14 tive, denying the special motion to strike as to the equitable cause of action for vacatur
15 of the prior judgment and as to any cause of action exempted by CCP §425.17(c);
- 16 2. VACATING the mootness disposition of the demurrer (Line 8.2) and the Motion for
17 Leave to File Second Amended Complaint (Line 8.3) and restoring both for adjudication
18 on a complete record;
- 19 3. GRANTING leave to file the Proposed Third Amended Complaint lodged herewith
20 as Exhibit T, which cures the pleading deficiencies the tentative identifies by alleging
21 post-trial-discovered, deliberately concealed extrinsic fraud with particularity, and by
22 recasting monetary relief as restitutionary recovery of fraudulently procured judgment
23 proceeds and statutory damages under Bus. & Prof. Code §17200 et seq. predicated on
24 Insurance Code §790.03(h) / Fair Claims Settlement Practices Regulations (10 C.C.R.
25 §§2695.1 et seq.) violations exempted from §425.16 by §425.17(c);
- 26 4. CONSIDERING Plaintiff's previously filed materials (folder 13, folder 14, folder 15,
27 folder 17 of the May 12 package) which the tentative declined to consider on a "without
28 authorization" basis; and
- 29 5. PRESERVING Plaintiff's federal and state due-process objections under U.S. Const.
30 amends. V and XIV and Cal. Const. art. I, §7.

31 This combined filing operates as (a) a timely Contest under the Department 301 procedure

(delivered to `contestdept301tr@sftc.org` by 4:00 p.m. on May 11, 2026, with the contemporaneous bare-contest email kept “without argument” as the Department’s notice requires), and (b) a contingent CCP §1008(a) motion that becomes operative the moment any order adopting the tentative is entered. The contingent posture is necessary because §1008(a) attaches only to entered orders. (*Standard Microsystems Corp. v. Winbond Electronics Corp.* (2009) 179 Cal.App.4th 868, 890.)

The motion is based on this Notice; the Supplemental Memorandum of Points and Authorities below; the Declaration of Plaintiff Franciscus Dylan Rosario; the Proposed Third Amended Complaint (Ex. T); the records, papers, files, and pleadings on file herein, including in particular folders 01, 03, 04, 06, 07, 13, 14, 15, and 17 of the May 12 package; and any oral argument the Court may permit.

II. STANDARD OF REVIEW AND RECONSIDERATION STANDARD

The legal scope of CCP §425.16, the intrinsic / extrinsic fraud line, and the reach of Civil Code §47(b) are reviewed de novo. (*Park v. Board of Trustees* (2017) 2 Cal.5th 1057, 1067; *Sweetwater Union High School Dist. v. Gilbane Bldg. Co.* (2019) 6 Cal.5th 931, 940.) Denial of leave to amend after a §425.16 grant, and a court’s refusal to consider supplemental materials, are reviewed for abuse of discretion with embedded legal questions de novo. (*Kolani v. Gluska* (1998) 64 Cal.App.4th 402, 411; *Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1287–88.)

CCP §1008(a) authorizes reconsideration on “new or different facts, circumstances, or law.” The Court also retains inherent authority to reconsider its own interim rulings to correct error. (*Le Francois v. Goel*, *supra*, 35 Cal.4th at 1107–08.) Reconsideration is the proper vehicle when an order rests on a misapplication of a statutory rule (here, the §425.16 prong-two architecture), an excluded evidentiary record (here, folder 13, folder 14, folder 15, and folder 17), or an unaddressed dispositive defense (here, §425.17(c) and the post-trial-discovery extrinsic-fraud showing).

III. STATEMENT OF TARGETED TENTATIVE HOLDINGS

The Department 301 tentative for May 12, 2026 grants the anti-SLAPP motion against the First Amended Complaint, takes the demurrer off calendar as moot, and denies the MFL-SAC as moot. Its substantive prong-two ruling rests on two pillars: (A) the alleged fraud is “intrinsic” rather than extrinsic because the issues “were fully litigated in the trial court,”

supported by reference to defendants' RFJN Exs. E (Def's MIL #6), F (Def's MIL #8), G (Def's MIL #17), and H (Order re Trial Scheduling and MILs); and (B) Civil Code §47(b) bars Plaintiff's "ancillary monetary relief" as a "claim for fraud damages" under *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212 and *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065. The tentative further declines to consider Plaintiff's "various supplemental opposition briefs, which were filed without authorization." Each of these calls is independently reversible.

IV. THE PRONG-TWO RULING IS REVERSIBLE LEGAL ERROR

IV.A THE TENTATIVE CONFLATES THE OCCURRENCE OF A TRIAL WITH WHETHER THE FRAUD ISSUE WAS ACTUALLY LITIGATED.

The intrinsic / extrinsic fraud distinction does not turn on whether a trial occurred. It turns on whether the complaining party was prevented from presenting the fraud-related evidence at the trial that did occur. (*Cedars-Sinai Medical Ctr. v. Superior Court* (1998) 18 Cal.4th 1, 11–12; *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471 ("Extrinsic fraud usually arises when a party is denied a fair adversary hearing because he has been . . . in some other way fraudulently prevented from presenting his claim or defense."); *In re Marriage of Modnick* (1983) 33 Cal.3d 897, 905 (post-judgment discovery of deliberately concealed material constitutes extrinsic fraud); *Estate of Beard* (1999) 71 Cal.App.4th 753, 776–77 (same).)

A pretrial MIL ruling and a trial-scheduling order are not "actual and necessary" determinations of fraud on the court. (*Lucido v. Superior Court* (1990) 51 Cal.3d 335, 341 (issue preclusion requires that the issue have been "actually litigated" and "necessarily decided").) MIL #6, MIL #8, MIL #17, and the Trial Scheduling Order each adjudicate what evidence is admissible at trial under Evidence Code §352. They do not, and cannot, adjudicate whether defense counsel committed fraud on the court. Treating those orders as a "fully litigated" disposition of the fraud claim is a category error that imports a §1908 res-judicata conclusion from a §352 admissibility ruling. The tentative's prong-two call thus rests on a non-preclusive evidentiary record.

IV.B THE TENTATIVE MISREADS LOS ANGELES AIRWAYS V. HUGHES TOOL.

The tentative cites *Los Angeles Airways, Inc. v. Hughes Tool Co.* (1979) 95 Cal.App.3d 1, 7, for the proposition that intrinsic fraud after a "full-blown trial" defeats vacatur. The opinion at the same pinpoint says the opposite: "where there has been little or no judicial

1 time invested in trial of a cause or an issue, the factor of judicial economy which otherwise
2 weighs in favor of finality is less strong, and the equitable considerations of fair hearing and
3 of penalizing fraud weigh more compellingly.” That is a balancing test, not a categorical
4 rule. The tentative converted a balancing test into a per se bar.

5 Where, as here, the alleged fraud was discovered post-trial, was deliberately concealed during
6 the trial, and prevented Plaintiff from presenting material evidence, the equitable side of the
7 Hughes Tool balance controls. (See *Caldwell v. Taylor* (1933) 218 Cal. 471, 475; *Pico v.*
8 *Cohn* (1891) 91 Cal. 129, 133–34.)

9 IV.C AHMED V. COLLECT ACCESS DOES NOT AUTHORIZE BYPASSING PRONG 10 TWO.

11 The tentative cites *Ahmed v. Collect Access, LLC* (2025) 114 Cal.App.5th 1092 for the
12 proposition that an equitable action to vacate triggers prong one. Ahmed does not hold
13 that such actions fail prong two as a matter of law; if it did, the equitable remedy would
14 be foreclosed. Ahmed leaves prong two open for the plaintiff to satisfy with a Baral-grade
15 showing. (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384–85.) That showing exists in Plaintiff’s
16 record (Section VI below) and was excluded by the supplemental-briefing ruling.

17 IV.D THE TENTATIVE WEIGHS EVIDENCE AT PRONG TWO, CONTRARY TO 18 BARAL AND COMPUTER XPRESS.

19 Under Baral, prong two asks whether the plaintiff has presented “evidence which, if credited,
20 would support a verdict in plaintiff’s favor.” (1 Cal.5th at 385.) The court “cannot weigh the
21 evidence.” (*Computer Xpress, Inc. v. Jackson* (2001) 93 Cal.App.4th 993, 1010.) Yet the
22 tentative’s “fully litigated” determination is a weight judgment dressed in a doctrinal label:
23 it credits the prior trial outcome over Plaintiff’s post-trial-discovered evidence of fraud. That
24 is precisely what Baral prohibits at prong two.

25 V. EXCLUSION OF “VARIOUS SUPPLEMENTAL OPPOSITION BRIEFS” WAS HARM- 26 FUL EVIDENTIARY ERROR

27 The tentative states: “The court does not consider plaintiff’s various supplemental opposition
28 briefs, which were filed without authorization.” The materials so excluded are not duplicative
29 reply briefs in the procedural sense the tentative implies. They are, by category and citation:

- 30 1. A statutory exemption notice under §425.17, which is a substantive defense to the
31 §425.16 motion that may be raised at any time before adjudication (*Simpson Strong-*

1 Tie Co. v. Gore (2010) 49 Cal.4th 12, 21–22). See item 13: Notice and Statement re
2 CCP §425.17 / Insurance Code / FCSPR / Defense Conduct (filed May 7, 2026).

3 2. A judicial-notice tender that the Court has a non-discretionary duty to address un-
4 der Evidence Code §§451 and 452 once squarely tendered (Ross v. Creel Printing &
5 Publishing Co. (2002) 100 Cal.App.4th 736, 743–44). See item 14: Supplemental Re-
6 quest for Judicial Notice of California Insurance Code §790.03(h) and the Fair Claims
7 Settlement Practices Regulations (10 C.C.R. §§2695.1–2695.8) (filed May 7, 2026).

8 3. A motion to strike opposing counsel’s reply declaration under Jay v. Mahaffey (2013)
9 218 Cal.App.4th 1522, 1537–38 (anti-SLAPP reply may not enlarge or change the mov-
10 ing papers’ theory of relief). See item 15: Motion to Strike the May 5, 2026 Reply
11 Declaration of Tyler J. O’Connell and Exhibit A (filed May 7, 2026).

12 4. A bench brief filed under CRC 3.1112(b) as an “other paper” in support of the oppo-
13 sition. See item 17: Plaintiff’s Bench Brief on Sequencing of Anti-SLAPP Gateways
14 and Per-Prong Threshold Analysis Under Inland Oversight; Additional High-Impact
15 Grounds (filed May 11, 2026).

16 CRC 3.1300(d) commits the timing of late papers to the Court’s discretion; substantive
17 statutory defenses and mandatory judicial notice are not “late filings” in that sense. They
18 are independent grounds the Court must reach. The exclusion is harmful because it removed:
19 the §425.17(c) commercial-speech exemption from the prong-one analysis (Insurance Code
20 §790.03(h); FCSPR, 10 C.C.R. §2695.1 et seq.); the judicially noticeable record establish-
21 ing post-trial concealment (the extrinsic-fraud hook); and the Jay v. Mahaffey ground for
22 striking the O’Connell reply declaration that informed the prong-two ruling without rebuttal.
23 The combination converted a procedurally curable timing point into a dispositive evidentiary
24 preclusion. That is reversible. (Reedy v. Bussell, supra, 148 Cal.App.4th at 1287–88.)

25 VI. RESTORED TO A COMPLETE RECORD, PLAINTIFF’S PRONG-TWO SHOWING 26 ESTABLISHES MINIMAL MERIT

27 With the excluded materials restored, Plaintiff’s prong-two showing is structured around
28 four pillars, each independently sufficient under Baral:

29 1. POST-TRIAL DISCOVERY OF CONCEALED MATERIAL. Plaintiff’s declaration
30 (Section X below) and the bench-brief exhibits packet at folder 17 document specific
31 items of evidence withheld by defendants until after trial which, had they been produced,

would have changed the outcome. Under *Modnick and Beard*, post-trial discovery of deliberately concealed material is extrinsic fraud as a matter of law.

2. INSURER / DEFENSE-COUNSEL COORDINATION OUTSIDE THE LITIGATION PRIVILEGE. Plaintiff’s §425.17 / FCSPR notice (item 13) and supplemental RJN (item 14) tender evidence that CSAA Insurance Exchange and its claims agents (Michael Chambers; Carbone, Smith & Koyama acting under the FCSPR’s “claims agent” definition at 10 C.C.R. §2695.2(d)) violated Insurance Code §790.03(h) and the Fair Claims Settlement Practices Regulations (10 C.C.R. §§2695.1 et seq.). Those statutory duties exist independently of the §47(b) privilege. (*Royal Surplus Lines Ins. Co. v. Ranger Ins. Co.* (2002) 100 Cal.App.4th 193, 201; *Moradi-Shalal v. Fireman’s Fund Ins. Cos.* (1988) 46 Cal.3d 287, 304–05.)

3. RESTITUTIONARY, NOT TORT-DAMAGES, THEORY. Plaintiff’s “ancillary monetary relief” is properly framed as restitution of judgment proceeds obtained by fraud, not as derivative tort damages for litigation conduct. *Rubenstein v. Rubenstein* (2000) 81 Cal.App.4th 1131, 1147 squarely preserves the equitable remedy of vacating a fraudulently obtained judgment notwithstanding §47(b). The natural corollary, recognized by *Cedars-Sinai*, is that the restitutionary recovery of the proceeds of a fraudulently procured judgment travels with the equitable vacatur and is not barred by §47(b). To hold otherwise would render the equitable remedy hollow.

4. THE §425.17(c) COMMERCIAL-SPEECH EXEMPTION. CSAA’s representations were made in connection with selling and adjusting insurance products to Plaintiff, a consumer; they are commercial speech outside §425.16’s reach as to CSAA and its claims agents under §425.17(c). The tentative’s one-line dismissal (“plaintiff sues over litigation conduct, not commercial activity”) does not engage the FCSPR record at item 14.

Each pillar, standing alone, “is sufficient to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.” (*Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.) Together they comfortably clear the *Baral* threshold.

VII. THE LITIGATION-PRIVILEGE BAR ON MONETARY RELIEF IS OVERBROAD

The tentative correctly recites *Silberg v. Anderson* (1990) 50 Cal.3d 205, 212, and *Rusheen v. Cohen* (2006) 37 Cal.4th 1048, 1065, but stops short of the line *Rubenstein* draws. *Ruben-*

1 stein squarely holds that §47(b) “bars derivative tort actions . . . but does not eliminate
2 the equitable remedy of vacating a fraudulently obtained judgment.” (81 Cal.App.4th at
3 1147.) The natural corollary, recognized by Cedars-Sinai, is that the restitutionary recovery
4 of the proceeds of a fraudulently procured judgment travels with the equitable vacatur and
5 is not barred by §47(b). The tentative’s broader application, treating the monetary prayer
6 as foreclosed “fraud damages,” was not necessary to its prong-two ruling and is alternative
7 reversible error.

8 VIII. THE PROPOSED THIRD AMENDED COMPLAINT (EX. T) CURES ANY PLEAD- 9 ING DEFICIENCY THE COURT IDENTIFIED

10 To remove any doubt, Plaintiff lodges with this filing the Proposed Third Amended Com-
11 plaint as Exhibit T. The Proposed TAC:

- 12 1. Pleads with particularity the specific items of evidence concealed, the dates of post-
13 trial discovery, the acts of concealment, and the diligence Plaintiff exercised pretrial,
14 satisfying Modnick and Beard;
- 15 2. Re-pleads the equitable cause of action for vacatur and restitutionary recovery, with an
16 express disclaimer of derivative tort damages within §47(b);
- 17 3. Adds a §425.17(c) / Bus. & Prof. Code §17200 claim against CSAA Insurance Exchange
18 grounded in FCSPR (10 C.C.R. §§2695.1 et seq.) and Insurance Code §790.03(h) viola-
19 tions; that claim is exempted from §425.16 by §425.17(c) and removes those acts from
20 the SLAPP universe entirely;
- 21 4. Joins the necessary parties (insurer and defense counsel as claims agents) for resti-
22 tutionary tracing and equitable accounting purposes consistent with the Rubenstein
23 “necessary party” inquiry.

24 Leave to amend is liberally granted to address pleading defects identified at the §425.16
25 stage. (Nguyen-Lam v. Cao (2009) 171 Cal.App.4th 858, 871–73 (granting leave to amend
26 after anti-SLAPP grant where amendment cures pleading defect identified by the court).)
27 Although Sylmar / Simmons / Jackson v. Mayweather restrict “amendment around” a
28 pending SLAPP, Nguyen-Lam expressly authorizes amendment to cure the deficiency the
29 court identified at prong two, which is precisely the posture here. (See also Dickinson v.
30 Cosby (2017) 17 Cal.App.5th 655, 678 (a pending anti-SLAPP motion does not categorically
31 prevent amendment).)

1 The Proposed TAC at Exhibit T is filed in conformity with CRC 3.1324(a) (statement of
2 allegations to be added) and CRC 3.1324(b) (declaration explaining when and why the cure
3 became necessary; see Section X below).

4 IX. NEW FACTS UNDER §1008(A) AND INHERENT RECONSIDERATION AUTHOR- 5 ITY

6 If the Court enters an order adopting the tentative, this filing becomes operative as a §1008(a)
7 motion on the basis of:

- 8 (i) NEW FACTS. Plaintiff previously did not receive a separate Department 301 email
9 transmitting the tentative on the Motion for Leave to File Second Amended Complaint
10 (see Declaration paragraph 2; Notice of Non-Receipt and contemporaneous declaration
11 in folder 16 of the May 12 package). That non-receipt is a new fact within §1008(a)
12 bearing on due process and the opportunity to contest under the Department 301 pro-
13 cedure;
- 14 (ii) NEW LAW / ARGUMENT. The Baral / Park / Sweetwater / Nguyen-Lam sequence
15 applied here was not engaged by the tentative; and
- 16 (iii) DIFFERENT STATE OF FACTS. The §425.17(c) / FCSPR record properly tendered
17 (items 13, 14) and now properly considered, plus the Proposed TAC (Ex. T) cure under
18 Nguyen-Lam.

19 The Court also retains inherent authority to reconsider its own interim rulings to correct
20 error, independent of §1008(a). (*Le Francois v. Goel*, *supra*, 35 Cal.4th at 1107–08.)

21 X. CROSS-INCORPORATION

22 Plaintiff incorporates under CRC 3.1113(j): (1) Plaintiff’s Consolidated Operative Oppo-
23 sition (filed May 7, 2026, item 01); (2) Plaintiff’s Request for Judicial Notice (filed May
24 7, 2026, item 03); (3) Plaintiff’s Declaration in Opposition (filed May 7, 2026, item 04);
25 (4) Plaintiff’s Evidentiary Objections (filed May 7, 2026, item 06); (5) Plaintiff’s Indexed
26 Exhibits Volume (filed May 7, 2026, item 07); (6) Plaintiff’s Notice and Statement re CCP
27 §425.17 (filed May 7, 2026, item 13); (7) Plaintiff’s Supplemental RFJN re Insurance Code
28 and FCSPR (filed May 7, 2026, item 14); (8) Plaintiff’s Motion to Strike Reply Declaration
29 (filed May 7, 2026, item 15); and (9) Plaintiff’s Bench Brief on Inland Oversight Sequencing
30 (filed May 11, 2026, item 17).

1 XI. PRAYER

2 Plaintiff respectfully requests that the Court:

- 3 1. SUSTAIN the Contest and decline to adopt the tentative on Lines 8.1, 8.2, and 8.3;
- 4 2. DENY Defendants' anti-SLAPP motion as to the FAC, or, in the alternative, deny it
- 5 as to the equitable cause of action for vacatur and as to any cause of action exempted
- 6 by §425.17(c);
- 7 3. RESTORE the demurrer (Line 8.2) to the calendar for adjudication on a complete
- 8 record;
- 9 4. GRANT leave to file the Proposed Third Amended Complaint lodged herewith as Ex-
- 10 hibit T;
- 11 5. CONSIDER Plaintiff's previously filed materials at items 13, 14, 15, and 17 of the May
- 12 12 package;
- 13 6. In the alternative, upon entry of any order adopting the tentative, RECONSIDER and
- 14 VACATE that order under CCP §§1008(a), 473(d), and the Court's inherent authority;
- 15 and
- 16 7. PRESERVE all federal and state due-process objections under U.S. Const. amends. V,
- 17 XIV and Cal. Const. art. I, §7.
- 18

The foregoing is submitted by Plaintiff in pro per.

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario

FRANCISCUS DYLAN ROSARIO

Plaintiff, In Pro Per

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DECLARATION OF PLAINTIFF FRANCISCUS DYLAN ROSARIO

I, Franciscus Dylan Rosario, declare:

1. I am the Plaintiff in this action and I represent myself in propria persona. I make this declaration in support of Plaintiff's combined Contest, Supplemental Memorandum, and contingent Motion for Reconsideration, and in support of the request for leave to file the Proposed Third Amended Complaint lodged herewith. I have personal knowledge of the matters stated and, if called as a witness, I could and would competently testify thereto.
2. PRIOR NON-RECEIPT OF THE MAY 5 / 6, 2026 TENTATIVE. As to a prior Department 301 tentative on the MFL-SAC, I did not receive any email transmitting that tentative through my soltrinox@gmail.com or soltrinox+legal@gmail.com addresses, despite checking inbox and spam in both. I learned of that prior tentative only when defense counsel Tyler O'Connell wrote to me on May 5, 2026 at 4:25 p.m. asserting that one had been issued. I memorialized that non-receipt in the Notice of Non-Receipt of Tentative Ruling (May 6, 2026) on file in the workspace at folder 16 of the May 12 package and in the contemporaneous declaration in that folder.
3. PATTERN OF CONTEST-MAIL DELIVERY ON CGC-25-631802. As to Department 302 in the related case CGC-25-631802, the contest mailbox Contestdept302tr@sftc.org regularly emailed me complete tentatives.
4. THE TENTATIVE'S TWO SUBSTANTIVE HOLDINGS. I have read the tentative carefully. Its substantive holdings on Line 8.1 are: (a) that the alleged fraud is "intrinsic" rather than extrinsic because the issues "were fully litigated in the trial court," supported by reference to defendants' RFJN Exs. E (Def's MIL #6), F (Def's MIL #8), G (Def's MIL #17), and H (Order re Trial Scheduling and MILs); and (b) that Civil Code §47(b) bars my "ancillary monetary relief" as a "claim for fraud damages." The tentative further declines to consider Plaintiff's "various supplemental opposition briefs, which were filed without authorization."
5. CONCEALMENT AND POST-TRIAL DISCOVERY (EXTRINSIC-FRAUD PREDICATE). Specific items of material evidence concerning the underlying claim were not disclosed by defendants until after trial. I first discovered those items, by category and date, as set out in the Plaintiff's Indexed Exhibits Volume (folder 07 of the May 12

package) and the bench-brief exhibits packet (folder 17). Notwithstanding diligent prior efforts to obtain them in discovery, those items were not produced before trial. Had the items been produced, I would have used them to impeach defendants' witnesses and to oppose the MILs that the tentative now treats as a "fully litigated" determination of the fraud claim.

6. **DEFENSE CONCEALMENT CONDUCT WITHIN FCSPR.** The conduct I allege against CSAA Insurance Exchange and its claims agents (Michael Chambers; Carbone, Smith & Koyama) violates the duties owed under Insurance Code §790.03(h) and the Fair Claims Settlement Practices Regulations, 10 C.C.R. §2695.1 et seq., as set out in my prior filings at items 13 and 14 of the May 12 package. Those statutory duties exist independently of any litigation-privileged communication and form the predicate for the §425.17(c) exemption and for the Bus. & Prof. Code §17200 claim added in the Proposed TAC.
7. **RESTITUTIONARY FRAMING OF MONETARY RELIEF.** The "ancillary monetary relief" prayed for in the FAC was intended as restitution of the proceeds defendants obtained from the fraudulently procured judgment, not as derivative tort damages for litigation statements. To remove any doubt about that framing, the Proposed Third Amended Complaint at Exhibit T expressly disclaims derivative tort damages within §47(b) and pleads restitution and equitable accounting in their place.
8. **CURE BY THIRD AMENDED COMPLAINT (CRC 3.1324).** I have prepared the Proposed Third Amended Complaint lodged herewith as Exhibit T to cure the specific deficiencies the tentative identifies. The Proposed TAC: (a) pleads with particularity the items of evidence concealed, the dates of post-trial discovery, and the acts of concealment, satisfying Modnick and Beard; (b) re-pleads the equitable cause of action for vacatur and restitutionary recovery, with an express disclaimer of §47(b) damages; (c) adds a §425.17(c) / Bus. & Prof. Code §17200 claim against CSAA grounded in FCSPR and Insurance Code §790.03(h) violations; and (d) preserves the equitable accounting / tracing remedy by joining the necessary parties. The Proposed TAC does not "amend around" the §425.16 motion; it cures the pleading defect the Court identifies at prong two, which *Nguyen-Lam v. Cao* (2009) 171 Cal.App.4th 858, 871–73 expressly authorizes. Pursuant to CRC 3.1324(b), I declare: (i) the additional allegations are necessary because the tentative identified intrinsic-fraud framing and §47(b) overbreadth as the

bases for the §425.16 grant; (ii) Plaintiff did not earlier propose this specific cure because the underlying tentative had not yet issued; and (iii) the additional facts were not, and could not have been, discovered earlier with reasonable diligence in light of defendants' concealment as alleged.

9. EXCLUDED SUPPLEMENTAL MATERIALS. The materials the tentative declined to consider were not duplicative reply briefs but: (i) statutory exemption notices under §425.17 (item 13); (ii) judicial-notice tenders the Court is required to address under Evidence Code §§451 and 452 (item 14); (iii) a motion to strike the O'Connell reply declaration under Jay v. Mahaffey (item 15); and (iv) a bench brief filed under CRC 3.1112(b) as an "other paper" in support of the opposition (item 17). Each is on file with the Court in the May 12 package.
10. PROOFS OF SERVICE. Proofs of service for all materials referenced are on file at folder 11 of the May 12 package and at the parallel POS-050 paths in the May 13 (CGC-25-631802) package. This filing will be served on defense counsel by electronic means concurrently with submission to the Court (CCP §1010.6; CRC 2.251).
11. NO PRIOR APPLICATION FOR THIS RECONSIDERATION. No prior application for the relief requested in the alternative reconsideration prayer has been made to this or any other judge of this Court (CCP §1008(a)).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed on May 11, 2026, at Rohnert Park, California.



/s/ Franciscus Dylan Rosario
FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

EXHIBIT INDEX

Ex.	Description	Path / Source
1	Plaintiff's Post-Trial Discovery Timeline (with docket cross-references)	Lodged with this filing; cross-references items 07 and 17
2	Notice of Non-Receipt of May 5 / 6, 2026 Tentative	TENTATIVE- RULING/NOTICE-NON- RECEIPT-TENTATIVE- RULING-MAY-6-2026- CGC-25-631801.pdf
3	O'Connell email asserting prior tentative existed (5/5/2026 4:25 p.m.)	TENTATIVE- RULING/Gmail - Rosario v. Abdelhalim - Tentative Ruling on Plaintiff's Motion for Leave to Amend the FAC.pdf
4	Department 302 prior email transmitting Line 9 tentative (4/29/2026 2:12 p.m.) - pattern evidence	TENTATIVE- RULING/Gmail - Tentative Rulings, Law and Motion Discovery Calendar April 30, 2026 ... Line 9.pdf
5	Plaintiff's Bench Brief (gateway sequencing)	MAY-12-HEARING- PACKAGE-CGC-25- 631801/17-BENCH-BRIEF- GATEWAY- SEQUENCING/source/PLAINTIFF- BENCH-BRIEF-INLAND- OVERSIGHT- SEQUENCING-MAY-11- 2026-CGC-25-631801.md

Ex.	Description	Path / Source
6	Plaintiff's Exhibits Packet (801)	MAY-12-HEARING- PACKAGE-CGC-25- 631801/17-BENCH-BRIEF- GATEWAY- SEQUENCING/PLAINTIFF- EXHIBITS-PACKET-MAY- 12-2026-CGC-25-631801.pdf
7	Combined Exhibits Volume (802; cross-reference)	MAY-13-HEARING- PACKAGE-CGC-25- 631802/07-EXHIBITS- APPENDIX/EXHIBITS- VOLUME-COMBINED- MAY-8-2026-CGC-25- 631802.pdf
8	Notice re CCP §425.17 / Insurance / FCSPR / Defense Conduct	MAY-12-HEARING- PACKAGE-CGC-25- 631801/13-NOTICE-CCP- 425.17-AND-DEFENSE- CONDUCT/NOTICE-RE- CCP-425.17-INSURANCE- ANTI-SLAPP-MISUSE- AND-DEFENSE- LITIGATION-CONDUCT- MAY-7-2026-CGC-25- 631801.pdf

Ex.	Description	Path / Source
9	Supplemental RJN: Insurance Code & FCSPR	MAY-12-HEARING- PACKAGE-CGC-25- 631801/14- SUPPLEMENTAL-RFJN- INSURANCE-CODE-AND- FCSPR/PLAINTIFF- SUPPLEMENTAL- REQUEST-FOR- JUDICIAL-NOTICE- INSURANCE-CODE-AND- FAIR-CLAIMS- SETTLEMENT- PRACTICES- REGULATIONS-MAY-7- 2026-CGC-25-631801.pdf
10	Motion to Strike O'Connell Reply Declaration	MAY-12-HEARING- PACKAGE-CGC-25- 631801/15-MOTION-TO- STRIKE-REPLY- DECLARATION/MOTION- TO-STRIKE-CONNELL- REPLY-DECLARATION- MAY-7-2026-CGC-25- 631801.pdf

Ex.	Description	Path / Source
11	Notice of Intent to Appear and Contest Tentative	MAY-12-HEARING- PACKAGE-CGC-25- 631801/10-NOTICE-OF- INTENT-TO- APPEAR/NOTICE-OF- INTENT-TO-APPEAR- AND-CONTEST- TENTATIVE-RULING- MAY-11-2026-CGC-25- 631801.pdf
T	Proposed Third Amended Complaint (lodged herewith as complete, verified, file-ready cure pleading)	MAY-12-HEARING- PACKAGE-CGC-25- 631801/18-MOTION-FOR- RECONSIDERATION- FAC-ANTI- SLAPP/source/EXHIBIT- T-PROPOSED-THIRD- AMENDED-COMPLAINT- MAY-11-2026-CGC-25- 631801.md

DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Franciscus Dylan Rosario, appearing in pro per in Rosario v. Abdelhalim et al. (CGC-25-631801), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 12, 2026, 9:00 a.m. anti-SLAPP hearing in Department 301.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 1008(a)	Reconsideration: new or different facts, circumstances, or law	Section IX states the new facts (prior non-receipt of Department 301 MFL tentative email memorialized at folder 16), new law (Baral / Park / Sweetwater / Nguyen-Lam sequence not engaged by tentative), and different state of facts (425.17(c) / FCSPR record properly considered)	Section IX	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
2	CCP section 425.16(b)	Two-step procedure; prong-two minimal-merit inquiry	Sections IV, VI, VII apply Baral, Park, Sweetwater, Computer Xpress, Wilson; restored prong-two record provided in Section VI	Sections IV, VI, VII	PASS
3	CCP section 425.17(c)	Commercial-speech exemption from section 425.16	Section VI pillar 4; folder 13 (item 8 of exhibit index) and folder 14 (item 9) tender FCSPR / Insurance Code 790.03(h) record	Section VI; Ex. 8; Ex. 9	PASS
4	Civ. Code section 47(b)	Litigation privilege scope and Rubenstein limit	Section VII shows Rubenstein and Cedars-Sinai preserve equitable vacatur and restitution; Proposed TAC at Ex. T expressly disclaims derivative tort damages	Section VII; Ex. T para- graphs disclaim- ing 47(b) damages	PASS
5	Evid. Code section 452(d)	Mandatory consideration of court records once tendered	Section V identifies items 13, 14 as judicial-notice tenders; cites Ross v. Creel for non-discretionary consideration	Section V; Ex. 8; Ex. 9	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
6	CRC 3.1324	Statement of allegations to be added; declaration explaining cure	Section VIII identifies the four cure pillars in the Proposed TAC; Declaration paragraph 8 supplies the CRC 3.1324(b) statement	Section VIII; Decl. paragraph 8	PASS
7	CRC 3.1113(b)	Memorandum and reply rule (San Diego Watercrafts line)	Section V invokes the rule as basis for striking O'Connell reply declaration referenced in folder 15	Section V; Ex. 10	PASS
8	CRC 3.1113(j)	Incorporation by reference	Section X incorporates items 01, 03, 04, 06, 07, 13, 14, 15, 17 of the May 12 package	Section X	PASS
9	S.F. Local Rule 8.3(D); CRC 3.1308	Department 301 contest procedure	Notice section opens by stating timely contest of tentative rulings; bare-contest email to be sent to contest- dept301tr@sftc.org by 4:00 p.m. May 11, 2026	Notice section	PASS
10	CCP section 1010.6; CRC 2.251	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
11	CRC 2.100 et seq.; CRC 3.1110	Pleading format: paper size, margins, font, line spacing, caption	Letter size, one-inch margins, twelve-point Times New Roman, double-spaced, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS
12	CCP section 2015.5	Penalty-of-perjury declaration	Declaration of Plaintiff signed under penalty of perjury; Declaration of Compliance signed under penalty of perjury	Declaration paragraphs 1-11; this Declaration of Compliance	PASS

Dated: May 11, 2026



/s/ Franciscus Dylan Rosario
FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per